

WIDGERA AI AGENT PRIVACY POLICY

Effective Date: April 16, 2026

1. WHO WE ARE

Widgera Inc. ("Widgera," "we," "us," "our") is a Delaware corporation that develops AI-powered chat assistants ("AI Agents") deployed by our business customers ("Clients") on their websites and communication channels. Our AI Agents provide customer service, analytics insights, and customer relationship management capabilities.

Contact Information:

- Company: Widgera Inc.
- Address: 1111B S Governors Ave #23248, Dover, Delaware 19904, United States
- Email: support@widgera.com
- Website: <https://widgera.com>

2. SCOPE AND APPLICATION

This Privacy Policy governs how Widgera AI Agents process personal information from end users ("End Users") who interact with AI Agents deployed by our Clients. This policy covers: data processing through AI Agent conversations, analytics chat conversations and insights processing, CRM data collection and storage, optional Customer Insights profiling feature, data storage and retention practices, and End User rights and choices.

This policy does not cover: Widgera's corporate website (widgera.com), other Widgera products and services, or Client's own data practices on their websites.

3. DATA CONTROLLER AND PROCESSOR ROLES

3.1 Role Definitions

- Client as Data Controller: Our Clients act as data controllers for End User chat data, determining the purposes and legal basis for processing
- Widgera as Data Processor: We process End User data solely under Client instructions as outlined in our Data Processing Addendum (DPA)
- Widgera as Controller: We act as controller only for our own operational data and Client account management

3.2 Legal Basis

Processing is based on the legal basis chosen by the Client, which may include: consent, legitimate interests, contract performance, or legal obligations.

4. DEFAULT DATA PROCESSING (MINIMAL RETENTION)

4.1 Transient Processing Only

Chat content is processed in real-time to generate responses. No chat content is retained beyond technical necessity (typically 24 hours). Only operational metadata is preserved for system functionality.

4.2 Limited Analytics

We maintain minimal, de-identified analytics including conversation counts, system performance metrics, usage statistics, and security data.

5. ENHANCED FEATURES: CRM AND ANALYTICS

5.1 Customer Relationship Management (CRM)

Contact Information: Names, email addresses, phone numbers voluntarily provided; communication preferences and contact history; business context and interaction summaries.

Interaction Data: Conversation topics and preferences; service history and patterns; communication channel preferences; custom tags and categorization.

Metadata: Interaction timestamps and frequency; geographic location (city/region from IP); device and browser information; session identifiers.

5.2 Analytics Chat Processing

Chat Content: Messages exchanged in analytics-focused conversations; user questions about business data; AI responses and analysis; historical conversation context.

Business Insights Processing: Patterns and insights from conversation content; analytics interpretations and recommendations; custom analysis requests; trend identification.

Conversation Context: Previous analytics discussions; user preferences; historical context; personalized recommendations.

5.3 Purposes of Enhanced Processing

Customer Relationship Management: maintaining contact information, tracking interaction history, personalizing service, supporting retention. Analytics and Insights: processing business data, answering analytics questions, providing recommendations, creating reports. Service Quality Enhancement: improving response relevance, reducing repetitive questions, enabling advanced capabilities.

5.4 Data Retention for Enhanced Features

Registered Users:

- CRM Data: Up to 36 months (configurable by Client)
- Analytics Chat History: Up to 36 months for conversation continuity
- Business Insights: Retained according to Client settings
- Contact Information: Until deletion requested or account closure

Unregistered Users:

- All Data: Automatically deleted after 7 days
- No Profiling: No long-term behavioral analysis
- Temporary Storage: Cookie-based identification for service continuity only
- Immediate Deletion: Available upon request via chat interface

5.5 Strictly Prohibited Processing

We explicitly prohibit creation or use of: special categories of data (health, religion, political opinions, sexual orientation, racial/ethnic origin), biometric categorization or emotion recognition, social scoring or trustworthiness evaluations, criminal propensity assessments, any processing resulting in unfair treatment, automated decisions with legal or significant effects, and social profiling for exclusionary purposes.

5.6 Automated Decision-Making Limitations

No legal or similarly significant decisions made solely through automated processing. End Users can request human review. All automated processing assists rather than replaces human decision-makers. Transparent explanation available upon request.

6. PRIVACY NOTICE AND CONSENT

6.1 Unregistered User Consent

Minimally intrusive notice below chat input for first 3 messages. Clear opt-out options before CRM data storage. No processing beyond basic chat functionality without consent.

6.2 Registered User Consent

Comprehensive privacy notice during account creation. Detailed explanation of CRM and analytics features. Optional feature activation with clear consent. Ongoing consent management through account settings.

6.3 Consent Management

Easy consent withdrawal through chat interface, account settings, or customer service. Immediate processing cessation upon withdrawal.

7. END USER RIGHTS AND CHOICES

7.1 Universal Rights

Access and Control: Data Access, Data Correction, Data Deletion, Processing Restrictions, Data Portability.

CRM and Analytics Rights: CRM Opt-Out, Analytics Limitation, Conversation Export, Profile Access.

7.2 Regional Privacy Rights

EU and UK (GDPR/UK GDPR): Right to object, right to human review, right to lodge complaints, right to restrict processing, right to data portability.

California (CCPA/CPRA): Right to know, right to delete, right to correct, right to opt-out (we do not sell data), right to non-discrimination.

Other Jurisdictions: Similar rights extended worldwide per local privacy laws.

7.3 Exercising Rights

Unregistered Users: In-chat requests processed within 24-48 hours. Automatic deletion after 7 days. Email support@widgera.com for complex requests.

Registered Users: Account dashboard self-service options. Email support@widgera.com with 'Privacy Rights Request.' Customer service assistance available.

Verification: Identity verification for security. Minimal information required. Alternative methods for unregistered users.

8. DATA SHARING AND SUB-PROCESSORS

8.1 Authorized Sub-Processors

Infrastructure Services: Google Cloud Platform (including Vertex AI): For hosting, storage, computing, and AI inference (region-specific).

Support Services: Database services, content delivery networks, monitoring tools, analytics platforms, and communication services.

8.2 Geographic Processing

European and Regional Data: For users in the European Union, UK, Switzerland, and Georgia, data is processed and stored exclusively within the European Union.

US and Global Data: Processed and stored within the United States.

No Cross-Border Transfers: We do not transfer data belonging to European or Georgian users to the United States without appropriate legal safeguards (such as SCCs).

8.3 Client Data Sharing

Clients receive access to their own CRM data and analytics, aggregated insights, performance metrics, and compliance reports. Strict separation between different Client data. No cross-Client data sharing or analysis.

8.4 Sub-Processor Management

Current Sub-Processor List: <https://widgera.com/legal/subprocessors>

30-day advance notice for material changes. Right to object to new sub-processors. Regular security assessments and audits.

9. INTERNATIONAL DATA TRANSFERS

9.1 Transfer Mechanisms

Standard Contractual Clauses (SCCs) with UK Addendum, Adequacy Decisions where available, Transfer Impact Assessments conducted and available upon request, appropriate safeguards as required by applicable law.

9.2 Transfer Safeguards

End-to-end encryption, contractual data protection commitments, regular security assessments, ongoing adequacy evaluations.

10. SECURITY MEASURES

10.1 Technical Safeguards

Encryption in Transit: TLS 1.3+. Encryption at Rest: AES-256. Database Security: Encrypted with access controls. API Security: OAuth 2.0. Network Protection: Firewalls and IDS. Access Controls: MFA and RBAC. Monitoring: 24/7. Backup Security: Encrypted with geographic distribution.

10.2 Organizational Measures

Regular security training, least privilege access, background checks, confidentiality agreements, comprehensive vendor assessments, contractual requirements, ongoing monitoring.

10.3 Customer Security Features

Secure authentication, session management, access monitoring, granular privacy settings, end-to-end encryption, secure export, deletion verification.

11. CHILDREN'S PRIVACY

11.1 AI Agents not intended for children under 13 (US) or 16 (EEA/UK). Business customers responsible for age verification. Enhanced safeguards for educational use. Immediate deletion of inadvertently collected children's data.

11.2 Educational institutions responsible for student privacy compliance. Enhanced protections, minimal data collection, and parental consent procedures where required.

11.3 Immediate deletion upon discovery, parent/guardian notification where possible, process review and documentation.

12. DATA BREACH NOTIFICATION

12.1 24/7 monitoring, rapid assessment, immediate containment, comprehensive investigation.

12.2 Client notification without undue delay, detailed incident information, assistance with notification obligations, regular updates. Compliance with all applicable regulatory notification requirements.

13. POLICY UPDATES

13.1 Periodic review and update. Compliance monitoring. User feedback incorporation.

13.2 Client dashboard notifications, email notifications, prominent notices on AI Agent interfaces. Extended notice for substantial changes, consent renewal where required.

14. CONTACT INFORMATION

14.1 General Inquiries

Widgera Inc. Privacy Team, 1111B S Governors Ave #23248, Dover, Delaware 19904, United States.
Email: support@widgera.com

14.2 Privacy Rights Requests

Email: support@widgera.com, Subject: "Privacy Rights Request - [Request Type]". In-chat requests available for unregistered users.

14.3 Emergency Contact

Email: support@widgera.com, Subject: "URGENT - Security Incident"

Response Timeframes: Standard Requests: 30 days. Urgent Deletions: 24-48 hours. Security Incidents: Immediate response.

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